

YOUR response to Special Interrogatory No. 345.”

The Court finds that a determination of whether these interrogatories seek information that is relevant to Plaintiffs’ causes of action turns on whether Plaintiffs seek attorneys’ fees as damages or as a form of costs of suit. If the former, then Defendants are entitled to discovery on the issue of attorneys’ fees, the subject interrogatories are relevant to the issue of damages, and Plaintiffs fail to justify Plaintiff Sarkis’ objections for the reasons set forth in detail, in the context of special interrogatory numbers 342 and 344, herein above. If the latter, then the Court agrees with Plaintiff’s objection that, “[a]ttorneys’ fees are not at issue until the court rules upon the second amended complaint’s substantive allegations.” (Response SS at 12:24-26, 15:28-16:4.)

Plaintiff Sarkis’ responses to the subject interrogatories are vague and ambiguous on this issue.

For the forgoing reasons, Defendants’ motion is GRANTED as to special interrogatory numbers 345 and 346.

E. Plaintiffs’ Request for Sanctions

Based on the foregoing, Plaintiffs did not successfully oppose the present motion. (See Code Civ. Proc. §2030.300, subd. (d).) The Court finds no grounds for granting Plaintiffs’ request for sanctions, and the request is therefore DENIED.

F. Conclusion

The Motion is Granted in Part. The clerk shall provide notice of this ruling to the parties forthwith. Defendants to prepare a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

¹ The Notice of Motion clearly seeks an order compelling only Plaintiff Lawrence Sarkis to issue further responses. (See Notice of Motion at 2:10-11.) However, the Opposition in the Court’s file is submitted on behalf of Plaintiffs Lawrence J. Sarkis, David Richards, and Kathi Bachelor. (See Opposition at p. 1: Title.) For this reason, the Court refers to the arguments of Plaintiffs, plural.

² Plaintiffs all but concede the point through their Response SS. “This interrogatory seeks the total amount of damages claimed in the second amended complaint for each category of damages, which consists of the attorney’s fees and costs Plaintiffs have claimed as potential damages if adjudged the prevailing party.” (Response SS at 5:12-18.) Plaintiff Sarkis made no such statement, however, in his responses to the subject interrogatories.

9:00 AM 19CV44187 Motion to File First Amended Complaint 07/10/2019 06/22/2021; 06/23/2021 Trial Confirmation Conferen

Ptff/Pet: Alberts, Ole; Dyken, Silas

Atty: Foley, Kenneth M.

Def/Res: Hurst, John C.; JTN Holdings Llc; NTJ Management Llc

Atty: Pro Se

TENTATIVE RULING: Plaintiffs Ole Alberts and Silas Dyken request leave to file a First Amended Complaint (FAC) to add a cause of action for intentional fraud based on the same set of operative facts alleged in the original Complaint. No opposition appears in the Court's file.

Motions for leave to amend are directed to the discretion of the court. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading...." (Code of Civ. Proc. § 473, subd. (a)(1).) The court's discretion is typically exercised liberally to permit amendment to the pleadings. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939.) However, the Court has discretion to deny leave to amend when it would not be in accordance with the spirit of the law and the ends of justice. (Dunzweiler v. Sup. Ct. of Alameda Cty. (1968) 267 Cal.App.2d 569.)

The Court finds that the FAC is based on the same set of operative facts alleged in the Complaint. The FAC appears, from the Court's review, identical to the Complaint except for the addition of a cause of action for intentional fraud. (See FAC at 4:12-5:4.)

Based on the foregoing, the motion is GRANTED. Plaintiffs are given 10 days' leave to file the FAC in the form attached as Exhibit A to the present motion.

The Clerk will provide notice of this Ruling to the parties. No further formal Order is required.

9:00 AM 19CV44187 Motion for Continuance of Trial 07/10/2019 06/22/2021; 06/23/2021 Trial Confirmation Conferen

Ptff/Pet: Alberts, Ole; Dyken, Silas

Atty: Foley, Kenneth M.

Def/Res: Hurst, John C.; Jtn Holdings Llc; Ntj Management Llc

Atty: Pro Se

TENTATIVE RULING: Plaintiffs Ole Alberts and Silas Dyken move for an order continuing the trial, currently set for June 23, 2021, to a new date to be determined by the Court, "if the granting of a Motion to Amend the Complaint so requires." (See Notice of Motion at 1:20-25.) No opposition appears in the Court's file. As the Court granted the Motion for Leave to File First Amended Complaint, Plaintiffs' Motion to Continue Trial is GRANTED. The Trial is continued to September 22, 2021, at 8:30 a.m. in Department 2, and remains scheduled as a one-day non-jury trial.

The Clerk will provide notice of this Ruling to the parties. No further formal Order is required.